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FISCAL COURT AGENDA ITEM REQUEST & COUNTY ATTORNEY REVIEW FORM

8/26/2026

Today's Date

KOC 26-920-36 2616 Singleton Ln. Zoning Map Amendment

Name of Document and/or Agenda Item

John Hine, Planning & Development 502-222-1476/ jhine@oldhamcountyky.gov
Submitted by (Name – Department - Committee) (phone / email)

Does this require Fiscal Court's approval? X yes no

9/16/2026 (1st reading), 10/6/2026 (2nd reading)
Fiscal Court Presentation Date

Who will be presenting Item to Fiscal Court? John Hine
(Ex: Committee, Chairperson, Department, Staff, Name)

What action (motion) are you requesting of the court?
Zoning Map Amendment

*** REVIEWED AND APPROVED AS TO FORM & LEGALITY BY COUNTY ATTORNEY ***

D Berry Baxter
(Signature)
D. Berry Baxter, Oldham County Attorney

08/26/26
Date

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Date: August 27, 2026

TO: David Voegele, Judge-Executive
100 W Jefferson Street
LaGrange, KY 40031

RE: Ordinance No. KOC-26-920-36
Biddle Family ZMA (PZ-26-016)
2616 Singleton Ln., La Grange
Zoning Map Amendment

Dear Judge Voegele,

In an effort to make sure items are heard by the legislative bodies in a timely manner, we are sending you notice of this approved docket item.

On July 28, 2026, the Oldham County Planning and Zoning Commission heard at a public hearing, a request for a Zoning Map Amendment on the above referenced docket. The motion to approve the Zoning Map Amendment carried. I've attached the approved minutes with this email.

Please tentatively place this item on the docket for the first reading on **September 15, 2026** and for the second reading/public hearing on **October, 6, 2026**. The legal description of the proposed zoning map amendment is enclosed.

Thank you for your assistance and please advise as to other information needed.

Sincerely,

John W. Hine

John W. Hine
Planner 1
Oldham County Planning and Development

Cc: Oldham County Fiscal Court Clerk

COMMONWEALTH OF KENTUCKY
OLDHAM COUNTY
ORDINANCE NO. KOC 26-920-36

AN ORDINANCE RELATING TO A CHANGE IN THE OLDHAM COUNTY ZONING MAP REZONING A 40.9 ACRE TRACT OF LAND LOCATED AT 2616 SINGLETON LANE, LA GRANGE, KENTUCKY FROM THE EXISTING I-2 HEAVY INDUSTRIAL DISTRICT TO AG-1 AGRICULTURAL/ RESIDENTIAL DISTRICT ZONING CLASSIFICATION.

* * * * *

WHEREAS, the Oldham County Planning & Zoning Commission on application of Greg and Shelby Biddle desires to change the Oldham County zoning map in reference to a 40.9 acre tract located at 2616 Singleton Lane, La Grange, Kentucky, and seeks a zoning map change for the 40.9 acres from the existing I-2 Heavy Industrial District to AG-1 Agricultural/ Residential District zoning classification; and,

WHEREAS, the Oldham County Planning & Zoning Commission did advertise and conduct a public hearing on the issue of rezoning the hereinafter described 40.9 acres on July 28, 2026 (Docket PZ-26-016), and at the conclusion of said hearing, did find that the map amendment is in agreement with the Comprehensive Plan and recommended to the Oldham County Fiscal Court that said zoning classification on the hereinafter described 40.9 acres be changed as requested; and,

WHEREAS, the Oldham Fiscal Court did advertise and conduct a public hearing on the recommended zoning map change, and Fiscal Court having made the necessary findings and conclusions justifying said zoning map change and said Fiscal Court having voted to adopt the zoning map change at its regular meeting

conducted October, 6, 2026.

NOW, THEREFORE, BE IT ORDAINED BY THE FISCAL COURT OF
OLDHAM COUNTY, COMMONWEALTH OF KENTUCKY, THAT:

The Oldham County zoning map controlling the zoning classification of the hereinafter described 40.9 acres from the existing I-2 Heavy Industrial District to AG-1 Agricultural/ Residential District classification located at 2616 Singleton Lane, La Grange, Kentucky. This zoning map change is accompanied by and contingent upon any and all binding elements to be recorded as restrictions on the land and its usage with the Oldham County Court Clerk at La Grange, Kentucky. **Being** Tract #2, 40.9 acres on Highway 146 (a/k/a La Grange Road), as shown on Survey of Miller Wihry, dated April 9, 2024, attached to Deed of Record in Deed Book 1385, Page 410, in the Office of the Clerk of Oldham County, Kentucky.

Dated this _____ day of _____, 2026.

DAVID VOEGELE
Oldham County Judge/Executive

ATTEST:

Oldham County Fiscal Court Clerk

**MINUTES OF REGULAR MEETING
OLDHAM COUNTY
PLANNING AND ZONING COMMISSION
Tuesday, July 28, 2026**

At 9:05a.m., local time on the above date, this meeting of the Oldham County Planning and Zoning Commission, hereinafter called the Commission, was called to order in the Courtroom of the Oldham County Fiscal Court Building, La Grange, Kentucky, by Chair Katie Nasser.

Other Commission members present were:

Wayne Allen	James Allison	Iva Davis (Left at 3:00p.m.)
William Douglas (Joined at 3:00p.m.)	Thomas Elder	Deborah Graham (Left at 3:30p.m.)
Berry Hampton	Allen Hayes	Bob Klingenfus (Left at 3:00p.m.)
Debbie Kraus	Tom Marsh	Skip Miller
Sue Ann Thompson		

Others present and sworn in were Planning and Development Services Director Ryan Fischer, Planner John Hine, and Oldham County Engineer Jim Silliman. County Attorney Berry Baxter was present for the meeting and Administrative Assistant Christy Edgar was the Secretary for the meeting.

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Approval of Minutes

Motion was made by Commissioner Miller and seconded by Commissioner Elder to approve June 23, 2026; minutes as submitted with the following corrections. Motion carried by unanimous voice vote.

Corrections

- Page 1, add “and” after Planner John Hine and before Oldham County Engineer Jim Silliman.
 - Page 6, change the word “singal” to “signal”.
 - Page 6, under Jon Baker’s first bullet point change the word “goods” to “improvement”.
 - Page 10, 8th sentence down from top change the word “they” to “there”.
 - Page 11, under motion change the word “Creed” to “Creek” and change the word “express” to “expressed”.
 - Page 13, 3rd bullet point and “/” between the words and or.
-

Secretary Christy Edgar called and read Docket:

DOCKET PZ-26-008 – An application has been filed by The Radcliffe Inn for a Zoning Map Amendment and Development Plan with Waivers of Division 280-060 and Division 280-070 on property located at 311 W. Jefferson St, and 312 W. Main St., La Grange. The property at 311 W. Jefferson is 0.563-acres and zoned R-4, Residential District, with a proposed zoning of C-2, Community Business District. The property at 312 W. Main St. is 0.266- acres and zoned R-4, Residential District, with a proposed zoning of C-N, Commercial Neighborhood District.

1. Introduction of the new information by staff and questions by the Commission:

Planner John Hine presented the following:

- Summary of the application.
- Case History (see Exhibit A, Staff Report dated July 28, 2026).
- Site history.
- Aerial Photos of the site.
- Photos of property.

Jim Silliman, Oldham County Engineer

- This project is less than an acre so it will not be required to get the Water Quality Management and Erosion Control Permit or the KYR10 Permit.
- There are no changes to the encroachments or driveways so there will be no Road Encroachment Permits, however if they need temporary encroachment permits then they will need to coordinate with the city or state.
- A traffic assessment was required, and it shows that no improvements are needed for the roadways.

Commissioner Allison asked, where will the overflow parking be located?

County Engineer Silliman replied, that is a good question for the applicant.

Commissioner Marsh asked, was there a conditional use permit when the funeral home was there, since it is zoned R-4?

Planner Hine replied, that was legal non-conforming. The funeral home has been there since at least the 70's.

2. Presentation by the applicant or representative and others in support of the application:

Hannah Wilson, Adams, Landenwich, Lay PLLC, 517 W. Ormsby Ave, Louisville, was present and representing the applicant.

- The applicant is wanting to take this Historic building that was the town's funeral home and convert it to hotel with an event center.
- The hotel will have 11 rooms, and the event center will have a capacity of 160 people.

- The applicant is asking to change 311 W. Jefferson Street from R-4 zoning to C-2, to allow for the hotel and event center.
- The applicant is asking to change 312 W. Main Street from R-4 zone to C-N because it is close to residential neighborhood.

Nathan Merrell, 4705 Sadler's Mill Road, LaGrange, was present and sworn in prior to presenting.

- I want to convert the funeral home into an 11-room, 12-bed boutique hotel with new construction event space on the East side, with a 160-person capacity.
- The existing floor plan conforms to hotel use with minimal structural work.
- Renovation to include full overhaul of mechanical systems significantly reducing risk of fire by electrical arcing while providing for higher energy efficiency of the individual system.
- The project will provide for expanded tax base through property assessments, transient tax, sales tax, insurance tax and occupational tax.
- The project will support tourism through transient stays.
- The project will provide a space for gatherings for community events.
- We will have revolving gallery works to provide a sense of community involvement while supporting the local art community.
- There is minimum 395 spaces West of Hwy 53 comprised of both lot and on-street parking spaces.
- We are seeking a waiver for additional 30 parking spaces needed for events to satisfy requirements.

Donna Sabo, Executive Director of LaGrange Tourism, 309 W. Main Street, LaGrange, was present and sworn in prior to presenting.

- This new hotel is more than a place for visitors; it is an investment in our community.
- It will support tourism.
- It will encourage visitors to shop and dine at our downtown LaGrange businesses.
- It will generate additional tax revenue for our city.
- I think it would be in our best interest to approve this project for our downtown LaGrange.

3. Testimony and questions by those opposing the application:

Joe Pierce, 312 W. Jefferson Street, LaGrange, was present and sworn in prior to presenting.

- I live across the street from this proposed development.
- I am not opposed to this project, but I am concerned about parking.
- The parking spaces do not exist to hold 160 people at the event venue.

4. Questioning of the applicant and those opposing the application by the Commission:

Commissioner Thompson asked, what was the capacity of the funeral home when it was operating?

Attorney Wilson replied, well over 100, but do not know what the capacity was and there were 20 parking spaces.

Lucy Ricketts, was present and sworn in prior to replying, I know it was well over 100 people. I know that parking did take up around the block and sometimes it did go down Main Street to Fifth Street.

Commissioner Thompson asked, any complaints from the neighbors?

Mrs. Ricketts replied, no, I don't think so, but I believe the neighbors just knew it was for a funeral and it was just temporary.

Commissioner Marsh asked, the neighbor to the east had questions about the lot line, have you worked that out with Mr. Lawson?

Mr. Merrell replied, yes, we redesigned our event center and instead of 7-foot side yard setback we are now about 10-foot side yard setback.

Commissioner Kraus asked, where do the residents' park that live in this area?

Mr. Merrell replied, I would suggest there are more parking spaces available during the evening time. But that would depend on what is going on downtown in LaGrange as well.

Commissioner Hayes asked, what about the pedestrian traffic, since you will have people walking multiple blocks?

Mr. Merrell replied, it was not a requirement.

Commissioner Kraus asked, have you talked to the businesses in this area to ask for permission to use their parking lots during the events?

Mr. Merrell replied, no, but our better plan would be to provide a small shuttle to and from the lot on Second Street, but I don't know that it's advantageous to put guests behind other people's properties.

Commissioner Miller asked, has there been any conversations with LaGrange Officials about parking issues?

County Engineer Silliman replied, there are no pedestrians' ordinances to require a study for pedestrian traffic, but there are sidewalks for pedestrians to use.

Director Fischer asked, is the 160-capacity layout with tables and chairs set up or is this the max capacity?

Mr. Merrell replied, inside the event space the capacity is 160, which is what we have to adhere to with the fire marshal.

5. Rebuttal evidence and Cross Examination by the Applicant:

Attorney Wilson's rebuttal statement:

- We are trying to be a good neighbor, and Mr. Merrell has had conversations with both neighbors to see how we can accommodate them along with accommodating us.
- The event center is just an occasional use, whether it is rented out during the day or evening time.

6. Rebuttal evidence and Cross Examination by the Opposition:

Rod Spies, 202 N. Fourth Ave., LaGrange, was present and sworn in prior to rebuttal.

- Most of the Fourth, Fifth and Second Streets all have no parking signs on the side of the streets.
- Many times, when I would come home around 5:00p.m. I would have to drive around to find a place to park, and many times I had to park in the school parking lot during funerals and wait until someone moves out of my driveway.

7. Final statement of the Opposition: None

8. Final statement of the Applicant:

Attorney Wilson's final statement.

- One thing I can suggest is for the city to create a resident only parking on the street.
- But I don't think we need to throw the business away because of parking, and I think if people are parking in front of neighbors' driveways, then that comes down to county parking enforcement.
- This event venue will not be an everyday issue.

END OF PUBLIC HEARING

Director Fischer summarized the docket.

FINDINGS AND DECISIONS
Docket PZ-26-008
Zoning Map Amendment
311 W. Jefferson Street
LaGrange

Motion was made by Commissioner Hampton and seconded by Commissioner Davis to approve the recommendation to the LaGrange City Council of the zoning map amendment from R-4 zoning to C-2 zoning located at 311 W. Jefferson Street, LaGrange, because the existing zoning classification given to the property is inappropriate and the proposed zoning is appropriate because the prior use was commercial since 1935 and because of the evidence and testimony provided today. This motion also includes the following Binding Elements.

Binding Elements

1. The approval applies only to the plan presented at the July 28, 2026, Oldham County Planning Commission public hearing.
2. There shall be no changes to the plan without review by the Oldham County Planning Commission and Engineer's Office.
3. The plan must comply with all established federal, state and county ordinances and requirements and comply with all necessary easement restrictions at the time of construction plan approval.
4. The applicant must obtain all necessary approvals from the La Grange Historic Commission.

The vote was as follows:

YES: Commissioners Allen, Allison, Davis, Elder, Graham, Hampton, Hayes, Klingenfus, Kraus, Marsh, Miller, and Thompson.

NO: None

ABSTAIN: None

ABSENT: Commissioner Douglas.

Motion approved on a vote of 12-0

FINDINGS AND DECISIONS

Docket PZ-26-008

Zoning Map Amendment

312 W. Main Street

LaGrange

Motion was made by Commissioner Marsh and seconded by Commissioner Miller to approve the recommendation to the LaGrange City Council for the zoning map amendment from R-4 to C-N located at 312 W. Main Street, LaGrange, because the evidence and testimony provided today shows that it does comply with the objectives of the comprehensive plan and it is good for the community and the county. This motion also includes the following Binding Elements.

Binding Elements

1. The approval applies only to the plan presented at the July 28, 2026, Oldham County Planning Commission public hearing.
2. There shall be no changes to the plan without review by the Oldham County Planning Commission and Engineer's Office.
3. The plan must comply with all established federal, state and county ordinances and requirements and comply with all necessary easement restrictions at the time of construction plan approval.

The vote was as follows:

YES: Commissioners Allen, Allison, Davis, Elder, Graham, Hampton, Hayes, Klingenfus, Kraus, Marsh, Miller, and Thompson.

NO: None

ABSTAIN: None

ABSENT: Commissioner Douglas.

Motion approved on a vote of 12-0

FINDINGS AND DECISIONS
Docket PZ-26-008
Preliminary Development Plan
311 W. Jefferson St. & 312 W. Main St.
LaGrange

Motion was made by Commissioner Elder and seconded by Commissioner Marsh to approve the preliminary development plan located at 311 W. Jefferson Street and 312 W. Main Street, LaGrange because it complies with objectives of the comprehensive plan including but not limited to LU1-1, LU1-4, LU3-1, and LU3-2 and because of the historic preservation aspect of this discussion and based on evidence and testimony provided today. This motion also includes the following Binding Elements.

Binding Elements

1. The approval applies only to the plan presented at the July 28, 2026, Oldham County Planning Commission public hearing.
2. There shall be no changes to the plan without review by the Oldham County Planning Commission and Engineer's Office.
3. The plan must comply with all established federal, state and county ordinances and requirements and comply with all necessary easement restrictions at the time of construction plan approval.
4. The applicant must obtain all necessary approvals from the LaGrange Historic Commission.
5. A landscaping and lighting plan will be required at time of construction plan submittal.
6. A consolidation plat will be required before construction plan approval.

The vote was as follows:

YES: Commissioners Allen, Allison, Davis, Elder, Graham, Hampton, Hayes, Klingenfus, Kraus, Marsh, Miller, and Thompson.

NO: None

ABSTAIN: None

ABSENT: Commissioner Douglas.

Motion approved on a vote of 12-0

FINDINGS AND DECISIONS
Docket PZ-26-008
Waiver of Parking Regulations
311 W. Jefferson St. & 312 W. Main St.
LaGrange

Proposed Waiver of Parking Regulations:

Proposed Event Space:

Minimum Required Parking Spaces: 28 spaces

Proposed Hotel:

Minimum Required Parking Spaces: 12 spaces

Proposed Professional Office Space:

Minimum Required Parking Spaces: 5 spaces

Total Required Parking Spaces: 45 spaces

Total Requested Parking Spaces: 15 spaces

Motion was made by Commissioner Marsh and seconded by Commissioner Davis to approve the waiver of parking regulations located at 311 W. Jefferson Street and 312 W. Main Street, LaGrange because strict compliance with the regulations would create undue hardship in this downtown location where many other businesses are using public parking to service them and I think this is adequate and the physical conditions of that property would require that and based on evidence and testimony provided today. This motion also includes the following Conditions of Approval.

Conditions of Approval

1. The waiver shall only apply to the plan reviewed at the July 28, 2026, Planning Commission public hearing.

The vote was as follows:

YES: Commissioners Davis, Elder, Graham, Hampton, Klingenfus, Kraus, Marsh, and Thompson.

NO: Commissioners Allen, Allison, Hayes and Miller.

ABSTAIN: None

ABSENT: Commissioner Douglas.

Motion approved on a vote of 8-4

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Motion was made by Commissioner Thompson and seconded by Commissioner Marsh to take a 10-minute recess starting at 11:05 a.m. Motion carried by unanimous voice vote.

Motion was made by Commissioner Kraus and seconded by Commissioner Miller to come back in session at 11:15 a.m. Motion carried by unanimous voice vote.

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Secretary Christy Edgar called and read Docket:

DOCKET PZ-26-014 – An application has been filed by Newcomb Oil Co., LLC for a Development Plan with Waivers of Division 310-040 Maximum Illumination Level and Division 160-040 Maximum Impervious Surface on property located at 4703 La Grange Rd., Buckner. The property is 2.01-acres and zoned C-2, Community Business District.

1. Introduction of the new information by staff and questions by the Commission:

Planner John Hine presented the following:

- Summary of the application.
- Case History (see Exhibit A, Staff Report dated July 28, 2026).
- Site history.
- Aerial Photos of the site.
- Photos of property.

Jim Silliman, Oldham County Engineer

- The land-disturbance will be greater than one acre so the applicant will need to obtain a KYR10 Permit from the Kentucky Division of Water and an Oldham County Stormwater Quality Management and Erosion Control permit from Oldham County Engineering Department.
- Proposing an underground water detention.
- There are two existing basins, and the engineer will be required to show how they are modifying those basins and accommodating those in the underground water drainage structure.
- We will require the applicant to comply with all our ordinances regardless of whether this has greater impervious surface.

Commissioner Miller asked, has the triangle area been deeded over to the county?

County Engineer Silliman replied, I do not think this has been done yet, however, Director of Operations Bo Glass has been looking into that.

Commissioner Miller asked, I would like for that portion to be deeded over to the county as one of the binding elements along with the radius of that street because it is inadequate today and to have it properly striped.

County Engineer Silliman replied, I have talked to their engineer about the 2–3-foot shift of the center line and our road department increased the radius of the opposite side because of the trucks coming in and rutting it out.

Commissioner Allison asked, how do we address porous concrete and porous asphalt now that it is being used in paving areas in our regulations for impervious surface?

County Engineer Silliman replied, it is not called out in our regulations, but we do utilize it sometimes. We must look at the different capability it has; we just must make sure that it has a maintenance agreement.

Chair Nasser asked, what is underground detention?

County Engineer Silliman replied, it is easier and cheaper to construct a pond with an open area, and it will release the water at the rate it was before construction.

Director Fischer asked, are sidewalks required?

County Engineer Silliman replied, I agree that it needs to be done and maybe ask the applicant to add sidewalks to the plans.

2. Presentation by the applicant or representative and others in support of the application:

Cliff Ashburner, Dinsmore & Shohl, LLP, 101 S. 5th Street, Louisville, was present and representing the applicant.

- Property is zoned C-2.
- Quality Place will have an additional lane added going out onto Highway 146. It will be one lane coming in and one lane dedicated going out turning left and one lane going out turning right.
- There will be a one-way entrance going into the gas station from Highway 146.
- The triangle portion of the property, where the sign is located, will be dedicated to Oldham County.
- We have requested a waiver for the impervious surface of 3%.
- The store will be red brick, red roof, and glass.
- The lights will be zero-foot candles at the property line to help maintain the privacy for the neighboring apartments.

3. Testimony and questions by those opposing the application: None

4. Questioning of the applicant and those opposing the application by the Commission:

Commissioner Allison asked, did the applicant investigate using the impervious concrete or asphalt to address the 3% waiver they are asking for?

Brad Miles, Newcomb Oil Co., LLC, 951 Withrow Ct., Bardstown, was present and sworn in prior to replying, we have never used the impervious asphalt it seems to fall apart after a couple years of use. We are detaining the runoff by using an underground basin.

Commissioner Kraus asked, the parking spaces in the upper part of the parking spaces look to be very dark, are they for the employees?

Attorney Ashburner replied, those will be for the employees. We would want our customers to use the parking spots directly lining the building. Also, it was to accommodate our neighbors to the north and west for reduce lighting.

Chair Nasser asked, will this Five Star accommodate EV Charging?

Mr. Miles replied, right now we are not at any of our stations, we have discussed it, but you need more space and we might in the future.

5. Rebuttal evidence and Cross Examination by the Applicant: None

6. Rebuttal evidence and Cross Examination by the Opposition: None

7. Final statement of the Opposition: None

8. Final statement of the Applicant:

Attorney Ashburner's final statement:

- I would like to ask this board to approve this development plan and the waivers because the use is permitted and my client has worked with the neighboring property owners when developing this plan.

END OF PUBLIC HEARING

Director Fischer summarized the docket.

FINDINGS AND DECISIONS

Docket PZ-26-014

Waiver for Impervious Surface

4703 W. Hwy 146

Buckner

Maximum Impervious Surface Requirements

Maximum allowed: 65% of the lot area

Proposed Maximum Impervious Surface: 68% of lot area

Waiver Request: 3%

Motion was made by Commissioner Marsh and seconded by Commissioner Miller to approve the waiver for impervious surface located at 4703 W. Hwy 146, Buckner, based on the testimony we heard today and that the requested waiver doesn't severely impact the intent of the ordinance as presented or as verified by the county engineer. This motion also includes the following Conditions of Approval.

Conditions of Approval

1. The waiver shall only apply to the plan reviewed at the July 28, 2026 Planning Commission public hearing.

The vote was as follows:

YES: Commissioners Allen, Allison, Davis, Elder, Graham, Hampton, Hayes, Klingenfus, Kraus, Marsh, Miller, and Thompson.

NO: None

ABSTAIN: None

ABSENT: Commissioner Douglas.

Motion approved on a vote of 12-0

FINDINGS AND DECISIONS

Docket PZ-26-014

Waiver for Illumination

4703 W. Hwy 146

Buckner

Maximum Luminance Regulations for open lot

Maximum Luminance Allowed (open lot): 8.0 Foot Candles

Proposed Maximum Luminance (open lot): 13.7 Foot Candles

Waiver Request (open lot): 5.7 Foot Candles

Motion was made by Commissioner Thompson and seconded by Commissioner Elder to approve the waiver for maximum illumination located at 4703 W. Hwy 146, Buckner, because the design innovations of this case will achieve the basic objectives of the regulations which is not creating lighting that would affect the surrounding apartments and because it complies with the zoning regulations. This motion also includes the following Conditions of Approval.

Conditions of Approval

1. The waiver shall only apply to the plan reviewed at the July 28, 2026, Planning Commission public hearing.

The vote was as follows:

YES: Commissioners Allen, Allison, Davis, Elder, Graham, Hampton, Hayes, Klingenfus, Kraus, Marsh, Miller, and Thompson.

NO: None

ABSTAIN: None

ABSENT: Commissioner Douglas.

Motion approved on a vote of 12-0

FINDINGS AND DECISIONS

Docket PZ-26-014

Development Plan

4703 W. Hwy 146

Buckner

Motion was made by Commissioner Miller and seconded by Commissioner Davis to approve the development plan located at 4703 W. Hwy 146, Buckner, because it complies with the objectives of the comprehensive plan, the zoning ordinance, and the subdivision regulations. This motion also includes the following Binding Elements.

Binding Elements

1. The approval applies only to the plan presented at the July 28, 2026, Oldham County Planning Commission public hearing.
2. There shall be no changes to the plan without review by the Oldham County Planning Commission and Engineer's Office.
3. The plan must comply with all established federal, state and county ordinances and requirements and comply with all necessary easement restrictions at the time of construction plan approval.
4. The applicant must submit a landscape and lighting plan for review by Oldham County Planning and Development staff.
5. As directed by KYTC, access to W. Hwy 146 must be mitigated with a right-in-right-out only barrier.
6. The triangle at Quality Place and Hwy 146 shall be transferred and dedicated to the county prior to construction plan approval.

The vote was as follows:

YES: Commissioners Allen, Allison, Davis, Elder, Graham, Hampton, Hayes, Klingenfus, Kraus, Marsh, Miller, and Thompson.

NO: None

ABSTAIN: None

ABSENT: Commissioner Douglas.

Motion approved on a vote of 12-0

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Secretary Christy Edgar called and read Docket:

DOCKET PZ-26-015 – An application has been filed by John Stewart for a Zoning Map Amendment and Development Plan on property located at 7405 W. Hwy 22., Crestwood. The property is 5.4-acres and currently zoned R-2, Residential District with a proposed zoning of R-4, Residential District.

1. Introduction of the new information by staff and questions by the Commission:

Planner John Hine presented the following:

- Summary of the application.
- Case History (see Exhibit A, Staff Report dated July 28, 2026).
- Site history.
- Aerial Photos of the site.
- Photos of property.
- Received 37 letters of opposition.

Jim Silliman, Oldham County Floodplain Administrator and Engineer

- The land disturbance area for this project will be greater than one acre, the applicant will be required to obtain a KYR 10 Permit from KY DOW and will need to obtain Stormwater Quality Management and Erosion Control Permit.

- There is a blue line stream, and it doesn't look like they will be affecting that but if they do then they will be required to get approval from the Army Corps of Engineers and the Division of Water.
- The Clore Lane realignment will affect this plan shown today and I would like to see a binding element that states the plan will be modified to accommodate the realignment of Clore Lane.
- The applicant did accommodate the South Oldham Fire Department's request for adding a right-out exit onto Highway 22. This will allow for this development to release traffic onto Highway 22, and it will serve as an entrance for emergency vehicles only to get into the development faster.

Commissioner Miller asked, as part of your binding element would you consider including that the developer grant or deed over the necessary real estate for the future realignment of Clore Station, since it looks like it will take a portion of their property.

County Engineer Silliman replied, yes, that is a great idea.

Commissioner Allison asked, in the traffic assessment study, how do they consider the fact that we have approved half a dozen subdivisions in the last year and a half that are impacting Highway 22?

County Engineer Silliman replied, a lot of that is based on growth. There's an assumed two to three percent growth overall, and a lot of that does get considered.

2. Presentation by the applicant or representative and others in support of the application:

Clint Elliot, Attorney, was present and representing the applicant.

- Introducing John Stewart to talk about the application.

John Stewart, 113 E. Main Street, LaGrange, was present and sworn in prior to presenting.

- We are requesting a rezoning from R-2 to R-4.
- This property is adjacent to the currently zoned R-4, which is part of the church camp.
- This project is class A apartment with 84 units which is small compared to the other apartment complexes in the area.
- We have been working with QK4 on the design and coordination with the proposed new road widening, the turning lanes and the safety of that intersection.
- This will be about a two year build out.

Motion was made by Commissioner Marsh and seconded by Commissioner Elder to take a 5-minute break. Motion carried by unanimous voice vote at 12:35 p.m.

Motion was made by Commissioner Elder and seconded by Commissioner Marsh to come back in session at 12:45 p.m. Motion carried by unanimous voice vote.

3. Testimony and questions by those opposing the application:

Josh Gatewood, 7415 Gatewood Dr., Crestwood, was present and sworn in prior to presenting.

- I am concerned about the wildlife once they remove the mature trees.
- I am concerned about the traffic and the intersection of Clore Lane and Highway 22.
- The Highway 22 and Clore Lane are one of the most dangerous intersections which have multiply injury accidents and even a fatality.
- This development will create more traffic.

Clarence Hixson, Attorney, 1336 Hepburn Ave, Louisville, was present and representing some of the neighbors to this development.

- Introduced Tom Jones with Tom Jones and Associates to do a review of the traffic assessment.

Tom Jones, Salem, IN, Tom Jones and Associates, was present and sworn in prior to presenting.

- I noticed a couple of inconsistencies and one was growth rate that was applied to the term functions.
- Normally there is a one and three percent increase year over year.
- The difference between the 2026 and the 2028 no build was a negative 4.3% projection of growth.
- The Wooldridge Ave turn is a negative 20% rate of growth that was projected.
- This assessment does not state why it has a negative growth rate, but a negative growth rate is something to be concerned about.
- This is taking current conditions and moving it to a condition of the future that the state identified would help reduce congestion. If the state does not realign Clore Lane and Wooldridge Ave, then the loss of service rates will increase.

Attorney Clarence Hickson continued.

- On the development plans that were submitted to this board today, proposed realignment will take out the clubhouse and the dumpster location.
- The proposal is premature and not fair to the public because it does not show what is being built.
- There is no indication the previous presentation before the commission showed attention to lighting, drainage, and other matters providing explicit details of the underground stormwater detention.

Lori Hall, 7415 Sunset Lane, Crestwood, was present and sworn in prior to presenting.

- In our 20 years of living in this area, Clore Lane has gone from a local access street to a major collector street.
- Clore Lane once ended in a cul-de-sac but now connects to over 500 new homes that have been constructed in Briar Hills, Brentwood, and Spring Hill Estates.
- Concerned with the removal of the mature trees.
- Asking this board to not approve this application until the Clore Lane and Wooldridge realignment is complete.

Bruce Tucker, 6904 Timber Wood Circle, Crestwood, was present and sworn in prior to presenting.

- Once Clore Station comes in they will join the bypass traffic down Clore Lane, which will add dozens more vehicles.
- This county has a problem of approving things and then for the next years we chase the problems.
- I am a registered nurse, and I have stopped many times to give aid at that intersection from crashes.
- I am a victim of that intersection as well.
- I don't believe that the realignment will help this intersection.

Tom Sturgeon, 330 Wooldridge Ave, Pewee Valley, was present and sworn in prior to presenting.

- Concerned about the traffic that this development will bring, coming from Clore Lane going onto Wooldridge Ave.
- Woolridge Ave is a narrow road and has a one lane bridge.
- Woolridge Ave is a connector road for Highway 22 to Highway 146 which will take you to the interstate.
- This development will create an unsafe environment on Wooldridge Ave which is not designed to accept the amount of traffic this development will create.

Roy Cullinan, 6802 Briar Hill Road, Crestwood, was present and sworn in prior to presenting.

- The 2003 Oldham County Major Thoroughfare plan referred to this location as a high frequency segment.

Amber Vaughn, 7434 East Orchard Grass Blvd., Crestwood, was present and sworn in prior to presenting.

- Representing Orchard Grass community.
- Infrastructure must come first.
- There is no data or evidence to justify this change.

Marianne Deptola, 8011 Shadowcreek Road, Crestwood, was present and sworn in prior to presenting.

- Representing 126 individuals who signed a petition.
- Until we know what the roads are going to be like and until the safety issues have been addressed this change from R-2 to R-4 is not warranted.

Jane Graves, 312 Wooldridge Ave., Pewee Valley, was present and sworn in prior to presenting.

- Wooldridge is a one lane street, and it cannot handle the traffic.

Michael Gillanwater, 333 Wooldridge Ave, Pewee Valley, was present and sworn in prior to presenting.

- I was never notified of the neighborhood meeting.
- The applicant must prove that R-2 is inappropriate and he has not done that.
- This intersection has the highest number of crashes, and it was the top safety concern identified during two rounds of public engagement.
- It would be irresponsible to allow this development until that road is improved.

Tim Klein, 7604 Keller way, Crestwood, was present and sworn in prior to presenting.

- How is rezoning this property from R-2 to R-4 consistent with the comprehensive plan for this area?
- If the intersection already requires a multi-million dollar safety project, why should additional density be approved before those improvements have been completed?
- How can the applicant claim that the project has very little impact when their own engineer acknowledges it degrades one movement from LOSE to LOSF?
- Has anyone evaluated the increase in crash risk and not just the increase in traffic?
- What has changed since the comprehensive plan was adopted that justifies replacing single family zoning with one of the highest density residential districts available?
- How much R-4 zoning is available currently and why aren't they using that?

Sowmya Telaprolu, 7000 Clore Lane, Crestwood, was present and sworn in prior to presenting.

- It's not about stopping growth, the concern is about making sure that growth happens in a way that respects the character of the existing neighborhood and follows a long-term vision the county already has adopted through the comprehensive plan and that we are not creating problems that we are left trying to solve later.
- This proposal is not in alignment with that.

Motion was made by Commissioner Kraus and seconded by Commissioner Thompson to extend the clock for additional three minutes. Motion approved by voice vote 12-0.

Jeff Crow, 6901 Briar Hill Road, Crestwood, was present and sworn in prior to presenting.

- These added cars are being added at the bottleneck.
- The vehicles that exit from this development will be right at the intersection which is already back up daily.

Kristi Briscoe, 7410 Sunset Lane, Crestwood, was present and sworn in prior to presenting.

- I want to know what studies have been done or going to be done with the school infrastructure.

Matt Killion, 6700 Clore Lane, Crestwood, was present and sworn in prior to presenting.

- If there is an incident on I-71 then the traffic comes down Highway 22 and they know the cut-through is Clore Lane and I have seen it back up and something needs to be done about this.

Jane Killion, 6700 Clore Lane, Crestwood, was present and sworn in prior to presenting.

- Families have chosen to live in this neighborhood because of the lower density residential setting and the attractive appearance.
- This large apartment complex would alter that.

4. Questioning of the applicant and those opposing the application by the Commission:

Commissioner Hampton asked, on these sets it shows the clubhouse as 12,500 sqft and the buildings are 11,800 sqft, it doesn't seem to work out?

Mr. Stewart replied, the clubhouse is 1,250 sqft., the plans have a typo with an extra zero on the clubhouse square footage.

Commissioner Miller asked, how do you propose to stage the construction in such a way to minimize the increase in traffic issues and meet the school compliance of 75 units a year?

Mr. Stewart replied, the development will be built over a two-year period. We will build the first two buildings and then the third being after that.

Commissioner Allison asked, what do you anticipate the rent on these apartments to be?

Mr. Stewart replied, rent will be about \$1,600 to \$1,750.

Commissioner Hayes asked, do you have any renderings of the buildings, so we can see that they will look like?

Mr. Stewart replied, we do not.

Commissioner Thompson asked, how would the plan change if it was approved with the change of Clore Lane?

Mr. Stewart replied, we would eliminate the clubhouse and move the dumpster area back to where the 30 parking spaces are located on the left of the property.

Commissioner Kraus asked, by removing the clubhouse will that change the classification of the apartments and the rent amounts?

Mr. Stewart replied, the amenity package is still being worked through, but they would still be class A apartments.

5. Rebuttal evidence and Cross Examination by the Applicant:

Mr. Stewart's rebuttal statement.

- I just want to reiterate that R-4 zoning abuts this property and is across the street.
- We are asking for the application to be evaluated according to the project's measured incremental impact and that is what the traffic assessment does.
- We are willing to work with the county and the transportation agency responsible.
- The assessment shows that there will not be much of an impact on Wooldridge from this development.
- There will be a landscaping buffer, and it is already on the plans.

6. Rebuttal evidence and Cross Examination by the Opposition:

Mrs. Telaprolu's rebuttal statement.

- The R-4 adjacent property does not have this type of structure or the density and magnitude and traffic that exists in the immediate area, including the R-4 that is mentioned in the campground.

Mr. Klein's rebuttal statement.

- Are you saying you are going to put these units up for rent for \$1,600-\$1,700 and be profitable?
- The R-4 next door is owned by the same property owners that are investing in this project, and what will prevent them from moving past this project and adding another 500 units?

Mrs. Tucker's rebuttal statement.

- I asked the people in the campground why they are involved in this project and they said because they need the additional income stream to support the campground and the organization. They also stated that these apartments will be upper end luxury apartments.
- Something is not making sense here.

Mr. Gatewood's rebuttal statement.

- The rental rate does not meet rental standards of Crestwood, and it will drastically change the landscape of the neighborhood and the neighborhood's property values.
- Class A apartments generally have pools and clubhouses and none of these are in the changed plan.

Mr. Hixson's rebuttal statement.

- Would like to see the drawings of the sewage pump station and force main and the backup power in case the power fails to the pump station where will it overflow to?
- Will a gravity line be built across Clore Lane?

David Ellis, 7503 Cantrell Drive, Pewee Valley, was present and sworn in prior to rebuttal statement.

- Encourage you to drive by this property to see how this fits into the area.
- We did not know about the neighborhood meeting.

Mrs. Grave's rebuttal statement.

- They may be on sewer, but I am on septic and please do not dump anymore liquid to my area because I have already had my septic tanks redone three times because of all these problems.
- I invite this board to come out and sit at Wooldridge and turn left or right, and I guarantee you that you will cuss.

Mrs. Briscoe's rebuttal statement.

- Does the comprehensive plan promote maintaining tree lines along major roadways?
- Most of this portion of Highway 22 has 60 foot or more setbacks.
- Once the developer donates the required space for widening it looks like there will be zero space for landscaping.

7. Final statement of the Opposition:

Mrs. Telaprolu's final statement.

- There are inconsistencies in the documentation that has been provided.
- I do not think this is something that is ready to be voted on.

Mr. Hixson's final statement.

- This development plan is stripped down of important facts that would give us a basis to make a non-arbitrary decision.

Mr. Sturgeon's final statement.

- I think this application should be denied.

8. Final statement of the Applicant:

Mr. Stewart's final statement:

- Regarding not having the sewer drawings is because we are not that far along with the development plans to have that drawing done.
- We have talked to MSD, and we do know where the sewer is located and we know we must have a lift station.
- We are not asking for any waivers.
- We are not a section 8 housing; it would not qualify.
- We are adding trees along the edge of the parking lot.

END OF PUBLIC HEARING

Director Fischer summarized the docket.

FINDINGS AND DECISIONS

Docket PZ-26-015

Zoning Map Amendment

7405 W. Hwy 22

Crestwood

Motion was made by Commissioner Allison and seconded by Commissioner Hampton to deny the recommendation to Oldham County Fiscal Court for a zoning map amendment located at 7405 W. Hwy 22, Crestwood, because changing to R-4 zoning would not be in compliance with LU1-1 and the existing R-2 zoning is appropriate as it complies with LU1-1, the R-2 classification allows, preserves, and protects the character of low density detached single family areas and neighborhoods, which is typical of much of the surrounding area. The proposed zoning is inappropriate because changing to a R-4 designation would allow for much higher density living units, which is not typical and would significantly alter the density and character of the area, also changing to R-4 would be in violation of LU1-1 which requires new developments to ensure they do not strain existing infrastructure and changing the R-4 designation would allow for potentially much higher density dwelling units, thus providing a significant increase in traffic in an already congested and hazardous area of Highway 22.

The vote was as follows:

YES: Commissioners Allen, Allison, Elder, Graham, Hampton, Klingenfus, Kraus, Marsh, Miller, and Thompson.

NO: Commissioners Davis and Hayes.

ABSTAIN: None

ABSENT: Commissioner Douglas.

Motion denied on a vote of 10-2

FINDINGS AND DECISIONS

Docket PZ-26-015

Development Plan

7405 W. Hwy 22

Crestwood

Motion was made by Commissioner Allison and seconded by Commissioner Davis to defer decision on the development plan located at 7405 W. Hwy 22, Crestwood, based on several points which were brought up today relative to the buffering, sewer system, and several other things that was brought up in the discussion today which have not been adequately thought through to the point that we can make a decision on.

The vote was as follows:

YES: Commissioners Allen, Allison, Davis, Elder, Graham, Hayes, Klingenfus, Kraus, Marsh, Miller, and Thompson.

NO: Commissioners Hampton.

ABSTAIN: None

ABSENT: Commissioner Douglas.

Motion to defer on a vote of 11-1

.....
Motion was made by Commissioner Hampton and seconded by Commissioner Elder to take a 30-minute break starting at 2:20 p.m. Motion approved by voice vote 10-1.

Motion was made by Commissioner Marsh and seconded by Commissioner Miller to come back in session at 3:00 p.m. Motion carried by unanimous voice vote.

Commissioner Davis and Commissioner Klingenfus left at 3:00 p.m.
Commissioner Douglas joined the hearing at 3:00 p.m.

.....
Secretary Christy Edgar called and read Docket:

DOCKET PZ-26-016 – An application has been filed by Greg and Shelby Biddle for a Zoning Map Amendment and Development Plan on property located at 2616 Singleton Ln., La Grange. The property is 40.9-acres and currently zoned I-2, Industrial District with a proposed zoning of Ag-1, Agricultural District.

1. Introduction of the new information by staff and questions by the Commission:

Planner John Hine presented the following:

- Summary of the application.
- Case History (see Exhibit A, Staff Report dated July 28, 2026).
- Site history.
- Aerial Photos of the site.
- Photos of property.

2. Presentation by the applicant or representative and others in support of the application:

Valerie Shannon, Brammell Law Office, PSC, 401 W. Jefferson Street, LaGrange, was present and representing the applicant.

- The applicant wants to build a home on the property and apply for a conditional use permit to build an accessory dwelling unit for her father to live on the farm too.
- The applicant is asking for a zoning change from I-2 to AG-1.
- The property is 40.93 acres.
- There are residential homes that adjoin this parcel.

- There is a pre-existing shared driveway.
- The applicant wants chickens, maybe some goats and cultivating lavender on the farm.
- I believe that this property was zoned I-2 due to the proximity to the CSX railroad lines and there was only one spur tract coming from that railroad that went to Anaconda Company, but I believe that track has been removed.
- The applicant is currently in the middle of the construction for their home, but to complete the process they need the zoning change to AG-1 to add an accessory dwelling unit.

3. Testimony and questions by those opposing the application: None

4. Questioning of the applicant and those opposing the application by the Commission:

Commissioner Thompson asked, is the parcel behind this property being used as residential?

Attorney Shannon replied, yes.

Commissioner Kraus asked, did the previous property owner receive permission for the property to be used as residential?

Attorney Shannon replied, yes.

Commissioner Hayes asked, since it was zoned industrial, is there anything on the property we need to be made aware of?

Attorney Shannon replied, I am not aware of anything, this property has been vacant for a very long time.

5. Rebuttal evidence and Cross Examination by the Applicant: None

6. Rebuttal evidence and Cross Examination by the Opposition: None

7. Final statement of the Opposition: None

8. Final statement of the Applicant:

Attorney Shannon's final statement.

- Changing the zoning to AG-1 is consistent with the way that this area has been developed.

END OF PUBLIC HEARING

Director Fischer summarized the docket.

FINDINGS AND DECISIONS
Docket PZ-26-016
Zoning Map Amendment
2616 Singleton Lane
LaGrange

Motion was made by Commissioner Kraus and seconded by Commissioner Miller to approve the recommendation to Oldham County Fiscal Court for the zoning map amendment located at 2616 Singleton Lane, LaGrange, because it complies with objectives of the community as well as how the land surrounding it has been used and because the current I-2 zoning is inappropriate and the recommended zoning AG-1 is appropriate. This motion also includes the following Binding Elements.

Binding Elements

1. The approval applies only to the plan presented at the July 28, 2026, Oldham County Planning Commission public hearing.
2. The plan must comply with all established federal, state and county ordinance and requirements and comply with all necessary easement restrictions at the time of construction plan approval.

The vote was as follows:

YES: Commissioners Allen, Allison, Douglas, Elder, Graham, Hampton, Hayes, Kraus, Miller, and Thompson.

NO: Commissioner Marsh.

ABSTAIN: None

ABSENT: Commissioners Davis and Klingenfus.

Motion approved on a vote of 10-1

Commissioner Graham left at 3:30 p.m.

FINDINGS AND DECISIONS
Docket PZ-26-016
Development Plan
2616 Singleton Lane
LaGrange

Motion was made by Commissioner Miller and seconded by Commissioner Elder to approve the development plan located at 2616 Singleton Lane, LaGrange, because it complies with objectives of the comprehensive plan, the zoning ordinance and it is consistent with the land use development in and around the area that was heard in today's testimony. This motion also includes the following Binding Elements.

Binding Elements

1. The approval applies only to the plan presented at the July 28, 2026, Oldham County Planning Commission public hearing.
2. The applicant shall obtain all necessary permits and inspections from the appropriate agencies.
3. Prior to construction of the Accessory Dwelling Unit, the applicant shall obtain a Conditional Use Permit from the Oldham County Board of Adjustments.

The vote was as follows:

YES: Commissioners Allen, Allison, Douglas, Elder, Hampton, Hayes, Kraus, Marsh, Miller, and Thompson.

NO: None

ABSTAIN: None

ABSENT: Commissioners Davis, Graham, and Klingenfus.

Motion approved on a vote of 10-0

.....
Secretary Christy Edgar called and read Docket:

DOCKET PZ-26-017 – An application has been filed by Cay Properties, LLC for a Zoning Map Amendment and Preliminary Subdivision Plan on property located at Buckeye Ln., Prospect. The total property is 150-acres with 0.5 acres to be rezoned. The property is currently zoned CO-1, Conservation District with a proposed zoning of R-1, Residential District.

1. Introduction of the new information by staff and questions by the Commission:

Planner John Hine presented the following:

- Summary of the application.
- Case History (see Exhibit A, Staff Report dated July 28, 2026).
- Site history.
- Aerial Photos of the site.
- Photos of property.
- Received one letter of support.

Jim Silliman, Oldham County Engineer _____

- This is a very minimum change to the plan.

Commissioner Miller asked, with the change in zoning for the development plan for these three lots, is there any degradation to the amount of foot storage for the stormwater detention areas result of taking this out of the CO-1 and putting it into R-1?

County Engineer Silliman replied, they have the proposed detention basin here, which they have yet to design, but it will be included in that. And it provides a little bit of additional buffer, and your natural topography was leading there anyway.

2. Presentation by the applicant or representative and others in support of the application:

John Talbott, Bardenwerper, Talbott & Roberts, 1000 N. Hurstbourne Pkwy., Louisville, was present and representing the applicant.

- We are reducing the development area and increasing the open space for this development.
- We are here to rezone a tiny area in our approved development plan.
- The previous development the two lots was over one acre and with the zoning change we can make those two lots into three smaller lots.
- The buffer between these lots and the neighbors will increase to approximately 100 feet with the three lots verses it was approximately 25 feet with the two bigger lots.

3. Testimony and questions by those opposing the application: None

4. Questioning of the applicant and those opposing the application by the Commission: None

5. Rebuttal evidence and Cross Examination by the Applicant: None

6. Rebuttal evidence and Cross Examination by the Opposition: None

7. Final statement of the Opposition: None

8. Final statement of the Applicant:

Attorney Talbott's final statement:

- If you decide to move in favor of this application, I ask that you base it on not only the testimony, but also the justification statement that we filed as part of the record.

END OF PUBLIC HEARING

Director Fischer summarized the docket.

FINDINGS AND DECISIONS

Docket PZ-26-017

Zoning Map Amendment

Buckeye Lane / Quarry Road

Prospect

Motion was made by Commissioner Kraus and seconded by Commissioner Elder to approve the recommendation to the Oldham County Fiscal Court for a zoning map amendment located at Buckeye Lane and Quarry Road, Prospect, because it complies with objectives and what was originally planned and it has improved some of the conditions and the existing zoning classification is inappropriate and the proposed classification is appropriate. This motion also includes the following Binding Elements.

Binding Elements

1. The approval applies only to the plan presented at the July 28, 2026, Oldham County Planning Commission public hearing.
2. There shall be no changes to the plan without review by the Oldham County Planning Commission and Engineer's Office.
3. The plan must comply with all established federal, state and county ordinances and requirements and comply with all necessary easement restrictions at the time of construction plan approval.

The vote was as follows:

YES: Commissioners Allen, Allison, Douglas, Elder, Hampton, Hayes, Kraus, Marsh, Miller, and Thompson.

NO: None.

ABSTAIN: None

ABSENT: Commissioners Davis, Graham, and Klingenfus.

Motion approved on a vote of 10-0

FINDINGS AND DECISIONS Docket PZ-26-017 Preliminary Subdivision Plan Buckeye Lane / Quarry Road Prospect

Motion was made by Commissioner Elder and seconded by Commissioner Douglas to approve the revised preliminary subdivision plan for the three lots located at Buckeye Lane and Quarry Road, Prospect, because it complies with objectives of the comprehensive plan, the zoning ordinance and the subdivision regulations based on the justification statement of the applicant and based on evidence and testimony heard today. This motion also includes the following Binding Elements.

Binding Elements

1. The approval applies only to the plan presented at the July 28, 2026, Oldham County Planning Commission public hearing.
2. There shall be no changes to the plan without review by the Oldham County Planning Commission and Engineer's Office.
3. The plan must comply with all established federal, state and county ordinances and requirements and comply with all necessary easement restrictions at the time of construction plan approval.
4. There shall be no division of any property into smaller lots without Planning Commission approval.

The vote was as follows:

YES: Commissioners Allen, Allison, Douglas, Elder, Hampton, Hayes, Kraus, Marsh, Miller, and Thompson.

NO: None.

ABSTAIN: None

ABSENT: Commissioners Davis, Graham, and Klingenfus.

Motion approved on a vote of 10-0

.....
Secretary Christy Edgar called and read Docket:

DOCKET PZ-26-018 – An application has been filed by Traditional Town, LLC for an amendment to a previously approved Development Plan for Norton Commons, Hamlets 1C, on property located at 6212 Schuler Ln., Prospect. The property is 48.6-acres and zoned PUD, Planned Unit Development District. ***(Section 320-080 (b) The Commission may review and approve major amendments to the approved Master Plan or Development Plan without a public hearing.)***

1. Introduction of the new information by staff and questions by the Commission:

Director Ryan Fischer presented the following:

- Summary of the application.
- Case History (see Exhibit A, Staff Report dated July 28, 2026).
- Site history.
- Aerial Photos of the site.
- Photos of property.

Jim Silliman, Oldham County Engineer

- This does not have an adverse effect on any of the previous approvals, although it increases the lots in this section from 111 to 114.
- This development includes previously designed stormwater detention basins.
- The overall continuity and the connectivity to the adjoining subdivision is not changing with this plan for the traffic.

FINDINGS AND DECISIONS
Docket PZ-26-018
Amendment to PUD Development Plan
Norton Commons / Hamlet Section 1
6212 Schuler Lane
Prospect

Motion was made by Commissioner Marsh and seconded by Commissioner Douglas to approve the amendment to PUD development plan Norton Commons / Hamlet Section 1 located at 6212 Schuler Lane, Prospect, that was submitted by the applicant. This motion also includes the following Binding Elements.

Binding Elements

1. The approval applies only to the plan presented at the July 28, 2026, Oldham County Planning Commission public hearing.
2. There shall be no subdivision of any lot into a greater number of lots without review by the Oldham County Planning Commission.
3. The cumulative phasing plan from Oldham County Public Schools remains in effect from the original approval.
4. All street trees and landscaping, including those in the right-of-way, shall be maintained by the developer and/or homeowner's association in perpetuity, even if removed or damaged by the County during maintenance of right-of-way tasks. Location of street trees is to be reviewed and approved by the County Engineer and Planning Staff.
5. The preliminary plan must comply with all established federal, state and county ordinances and requirements at the time of construction plan approval.

The vote was as follows:

YES: Commissioners Allen, Allison, Douglas, Elder, Hampton, Hayes, Kraus, Marsh, Miller, and Thompson.

NO: None.

ABSTAIN: None

ABSENT: Commissioners Davis, Graham, and Klingenfus.

Motion approved on a vote of 10-0

..... Other Business:

Director Fischer presented certificates that Commissioner Iva Davis completed 20 hours of outside continuing education training.

Motion was made by Commissioner Douglas and seconded by Commissioner Miller to approve Commissioner Iva Davis's outside continuing education training for 20 hours. Motion carried by unanimous voice vote.

.....
There being no further business, the Planning Commission meeting adjourned at 4:05 p.m.

The next regular meeting will be on Tuesday, August 25, 2026, at 9:00 a.m. and will be held in the Oldham County Fiscal Court courtroom at 100 W Jefferson Street, La Grange, 40031.

Approved:



Katie Nasser, Chair

Respectfully Submitted:


Christy Edgar, Secretary